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Topic: The Canonical Tradition at the foundation of Norms Governing Clerical Conduct in Political and Civic Life (Canons 285 & 287)

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Abstract:

The progress in the canonical concern regarding the participation of clerics in active politics showed a gradual development in our changing world and modern society. While before the 1917 code the emphasis was more on safeguarding church doctrines and encouraging priests to concentrate on pastoral ministry. In the most recent time, the church has to safeguard herself and her image from public mockery and avoid any circumstances that will lead the people of God to lose faith in God. The context has changed drastically between the 14th century and 16th century and between the 16th century and 21st century. However, not much has changed essentially in the canonical regulation except the inclusion or exclusion of certain professions. The prohibitions, permissions and dispensations have received different emphasis in the historical development of the Church's laws. Nevertheless, the principal difficult today remains its implementation. This work considers the reasons and motivations behind these prohibitions and to what extent can this law be relaxed in certain conditions for the common good of the Church especially when the principles guiding the Christian faith should be defended.

Introduction:

Man is a political being. As long as we live in a society and community composed of different persons, there will be need for organisation, direction and communal sense of purpose. These make political structures necessary and indispensable.

The Bible calls Christians to be salt of the earth and light of the world. Therefore, our lives as Christians should permeate the world in which we live so that the Gospel of Christ can be properly disseminated.

Among the people of God, there are different status, rights and obligations. Clerics in their own status, are called to minister to Christ's faithful with their whole life. This special position and status require attention and concentration.

The question arises as to whether clerics are to be involved also in the affairs concerning the protection of the common good. How are we going to make sure that political decisions in the civil societies are not against the principles guiding the Christian faith. If clerics are to defend the rights of the church, to what extent are they to be involved in the public offices and civil politics?

The code of canon law has regulated to a reasonable extent the participation of clerics in public offices involving the exercise of civil powers. Our aim in this work is to throw more light on the principles at the foundation of the church's laws prohibiting clerics from active politics. We will try to understand to what extent can this prohibition be applied and what is expected of clerics in a society that is becoming more secular. Can we consider it as a total prohibition? Clerics who are involved in partisan politics and offices involving exercise of civil power insist that they are doing such in order to defend Christina core principles and the common good.

Our work is limited to the study of can 285 § 3 and 287 of the 1983 code of canon law. References will be made to the parallel canons in the same code. Nevertheless, at the foundation of this canon are norms and laws that will require our attention. The term clerics will refer to both religious and diocesan clerics and we will specify as religious clerics when the question concerns only religious clerics.

1.0 THE FOUNDATION OF CANONICAL TRADITION AND PROHIBITIONS ON CLERICAL CONDUCT IN POLITICAL AND CIVIC LIFE

In the first place, we should be aware that can 285 and 287 of the 1983 code of canon law are norms that developed through a long history in the organisation of the church Although this work is not a historical excursus on the regulations regarding clerics participation in political and civil life, we have to note that this regulation has a long history.

The third Council of Carthage (397) remarks that it is resolved that Bishops and priests and deacons and clerics are not to be tenants of estate, nor public officials (procuratores), nor are they to seek their livelihood by any shameful or dishonest business transactions; because they ought to remember what has been written: no one serving God is to involve himself in worldly transactions.[i]

It was the council of Chalcedon (451) in can 3, that made another significant move towards prohibiting Priests and monks from participating in secular administrations. Through this way, the council indirectly prohibited them from

participation in public office. The reason behind the prohibition was to ensure that clerics focus mainly on pastoral mission and eschew greed and self-seeking tendencies which was creeping into the life of clerics as a result of involvement in civil administration.

In the code of Justinian, we observed that clerics were already prohibited from assuming certain offices. Justinian stated clearly that a deacon or clergy no matter his rank or any Monk is prohibited from being appointed to receive or collect a tax, or to be a recorder of public or private property, caretaker of a household, or attorney in cases of litigation or a surety to any of the above-mentioned public functions.[ii]

From the above affirmation it is evident that the prohibition is intended to protect the sacred ministry which is the most important element in priestly life. It serves also to prevent any religious establishment from sustaining damage. It is important to note that at this time, the prohibition is not particular and therefore applies to all grades of the clerical state. The restrictions were broader than what is contained in the present legislation.

In the medieval era when the discovery of ancient manuscripts regarding church laws was gradually initiating a anew point of departure the Decretum of Burchard of Worms became an important reference in canon law in Europe. In book two of his decretum doctrinal instructions regarding priests are outlined. It emphasises the obligation of clerical way of life and handles questions regarding clerics in public office. Burchard made reference to the Council of Chalcedon. In his reference to the third canon of the council, he omitted the final part which prohibits the cleric from assuming offices in secular matters without a special permission from the Bishop of the city. However, Burchard set down the first part of the canon which prohibited a cleric from mixing himself in secular affairs.[iii]

1.1 PROHIBITIONS ON CLERICAL CONDUCT IN POLITICAL AND CIVIC LIFE IN MODERN TIMES

The modern society presents herself with certain problems. One of the most predominant problems was the emergence of new democratic systems of government and as a consequence existing legislations regarding clergy and public office had been framed in the context of appointive offices.

As the organisation of the church's life and relationship with the civil authority gets better, the Church's missionary activity becomes more evident. Pope Gregory XV on June 6, 1622, created the Congregation for the Propagation of faith, presently the Congregation for the Evangelization of the peoples. The first secretary of the new congregation, Monsignor Francesco Ingoli (1578-1649), set

in motion a policy designed to regulate the relationship of the missionaries both to their sponsoring government and to their host nation.[iv] He served as a secretary from 1622 till death in 1649. In a secular dated 15 January 1622 directed to Goa and the adjacent Islands, the congregation warned missionaries to be sensitive to the danger of alienating themselves from local officials by involvement in secular affairs.[v] Later on, an evident case occurred in Goa in 1658, when Alexander VII directly intervened and forbade priests from involving themselves in the electoral process.[vi]

At the stage the canonical interventions by the church became very necessary. This is because clerics who were elected to public office after obtaining the required ecclesiastical permissions, were often required to take an oath of office required by the secular government. This is still applicable in our Nigeria democratic setting and in many parts of the world today. The situation of priests taking an oath before a secular official raised lots of questions.

In line with this, J.H. Provost presented the situations in this way: "…the question arose as to priests serving in various public offices (including mayor of the town), and the oath of office required by the secular government. In a fairly nuanced series of responses, which opened the way for Catholics to participate in Italian government under certain safeguards, the Apostolic Penitentiary responded that clerics were not permitted to assume or exercise civil or lay offices without permission from the proper church authorities, and they were never permitted to take the oath required by the government".[vii] This phenomenon is necessary to understand better the Spirit of the law because it must be taken into consideration while applying the law.

1.2 THE COUNCIL OF TRENT

The issue of clerics participating in public office was not among the themes discussed during the council.

Councils of 1545-1547 and 1551-1552 are the first two periods of the Council of Trent that did not focus on priestly life. 1562-1563, which was the last and the third period of the council of Trent made effort towards reforming the Church. However, it did not treat clerical involvement in public ministry. A sustained reflection on Priestly and clerical vocation is notable in the third period of the council of Trent while stressing the witness value of a life dedicated to the pastoral ministry[viii]. Even though there was no explicit law preventing Priests from involving themselves in active politics, the regulations regarding residence were made to ensure a regular pastoral care in parishes especially for secular priests.

1.3 THE PREPARATION FOR THE 1917 CODE

Before the codification of the 1917 code of canon law, we observed that the Catholic Church was under increased pressure to become involved in the political process not only to support candidates that will promote the Catholic faith but also for safeguarding the common good. Anti Catholic legislation in Hungary forced the bishops to consider the option of promoting candidates more favorable to the Church. Pope Leo XII supported this position and sanctioned the involvement of priests in safeguarding of religion and common good.[ix] This dramatic situation did not bring much change in the Church's legislation. However, it must be taken into consideration while understanding and interpreting the spirit of the law. This is so because the personal desire of individual priest was placed under control to avoid infringement on the existing ecclesiastical legal norms.

The Sacred consistorial congregation, on May 9, 1913, issued a decree allowing clerics to stand as candidates for elected political offices in France under certain circumstances. It is worthy of note that they were prohibited from placing themselves as candidates unless they had obtained both the permission of their own ordinary and the ordinary of the place where the election was to take place.[x]

Therefore before the publication of the 1917 code of canon law we are faced with the following conditions: First there is need to emphasis that the reforms concerning religious and clerical life be strictly followed. Clerics and religious were under general prohibition against involvement in public offices. However, this general prohibition admits exceptions which are taken care of when adequate permissions are granted.

2.0 THE 1917 CODE

The 1917 code of canon law was promulgated on May 27, 1917, by Pope Benedict XV. Book II of the Pio Benedictine code is titled De personis. In this book II, the clergy, religious, and members of societies of the common life were prohibited from seeking or accepting public office, whether appointive or elective.[1] In

[1] Can. 139: § 1, "Ea etiam quae, licet non indecora, a clericali tamen statu aliena sunt, vitent.
§. 2, Sine apostolico indulto medicinam vel chirurgiam ne exerceant; tabelliones seu publicos notarios, nisi in Curia ecclesiastica, ne agant; officia publica, quae exercitium laical is iurisdictionis vel administrationis secumferunt, ne assumant.
§. 3, Sine licentia sui Ordinarii ne ineant gestiones bonorum ad laicos pertinentium aut officia saecularia quae secumferant onus reddendarum rationum; procuratoris aut advocati munus ne exerceant, nisi in tribunali ecclesiastico, aut in civili quando agitur de causa propria aut suae ecclesiae; in laicali iudicio criminali, gravem personalem poenam prosequente, nullam partem habeant, ne testimonium quidem sine necessitate ferentes.

relation to the obligations of clerics canon 139 of 1917 code in paragraph 1 states that the clergy shall avoid those things which, although they are not unbecoming, are nonetheless alien to the clerical state …….[xi] The third paragraph concerns offices or activities that require the permission of the ordinary before they can be taken up by clerics. The final paragraph of can 139 affirms that they shall not solicit or accept the office of senators or legislative representatives, referred to as deputies, without permission" Therefore permission is required before a priest can accept the office of a senator or a member in the house of Representatives. These last two paragraphs (3 and 4) of 1917 code mention specific activities and occupations which were considered alien to the clerical state. Among these was assumption of public office. The coetus never considered this list to be exhaustive.

More relevant to us is paragraph two of canon 139 of the 1917 code, since it is the very paragraph that prepared the ground for can 285 § 3 and 287 § 2 of 1983 code. The first part considers activities which can be carried out by clerics but only with the reception of apostolic indult.[xii] The second part of paragraph 2 prohibits clerics from assumption of offices or works or activities which involves the exercise of lay jurisdiction or administration. This implies civil power of governing.

Canonists were of different opinions regarding the interpretation of can 139 especially paragraph 2 that demands apostolic indult for certain activities and offices. However, the question regarding offices involving exercise of civil juridic powers were not in doubt. Nevertheless, the dilemmas regarding promoting politicians who are ready to defend the course of the Christian religion and the general obligation of promoting the common good has continued to create difficulties in the observance of the canonical legislation among clerics. Those who seek political appointments and who desire to participate in partisan politics have continued to insist that they are doing such in defence of Christian principles and the need to ensure an equitable distribution of the common good.

The two key concepts on the prohibition canon were "indecora" and "alienus". The fact that public offices and some activities are (indecora) unbecoming or foreign (alienus) to the clerical state was the major reason why Clerics were prohibited from assuming such offices. We have to note that these prohibitions were not based on the fact that these activities were evil in nature but because they are not adequately fitted to the dignity of the clerical state. Alienus implies

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§. 4, Senatorum aut oratorum legibus ferendis, quos deputatos vocant, munus ne sollicitent neve acceptent sine licentia Sanctae sedis in locis ubi pontificia prohibitio intercesserit; idem ne attentent al iis in locis sine licentia tum sui Ordinarii, tum Ordinarii loci in quo electio facienda est.!'

that they are intrinsically incompatible to the clerical state.[xiii] It is evident that the Spiritual mission of the Church was at the mind of the legislator in reference to the first paragraph of canon 139.

Mainstream canonists were of the opinion that can. 139 § 2 included most political offices that involves the exercise of the power of jurisdiction or administration Canonists like F. X. Wernz, F. Vidal, E.F. Regatillo, A. Wermeersch, unanimously emphasised that paragraph 2 of canon 139 of the 1917 code concerned mainly the above indicated public offices which includes the offices of Presidents, governors, senators, members of the house of representatives, to mention but a few.[xiv]

The problem of the interpretation of can 139 § 2 is not over. There is need to define what position in the civil state are involved in the legislation of this paragraph. Some authors affirm that clerics who occupy elected position as members of the parliament or any elected state assembly were not included in the prohibition of can 139 § 2. J. R. Brunini who adopts a more liberal position in relation to this canon, was of the opinion that clerics who exercised political administration simply by means of a vote were not subject to the restrictions of can 139 §2.[xv]

We are then faced with the problem of defining positions which were merely consultative, administrative in nature and others that requires the exercise of juridic powers.

In spite of positions that uphold that political offices that were mainly consultative in character were not prohibited by can. 139 § 2, mainstream canonists like F.X Wernz and P. Vidal are of the opinion that these positions and other non-jurisdictional duties of advisory nature in civil government involve a burden of rendering an account, such offices could hardly be accepted licitly, without permission of the ordinary.[xvi] This document is at the foundation of the fourth paragraph of can. 139 § 4. This last paragraph in addition requires the permission of the Holy See in specific places.

We have to note that the verbs “solicitent” implies conducting of oneself as a candidate or putting one’s name forward as a candidate.[xvii] The second verb in the paraghraph “acceptent” implies prohibition from accepting of an office to which one has been elected with or without one’s own consent, and to the act of allowing a third party to put one’s name forward as an electoral candidate.[xviii]

2.1 WHO CAN GRANT THE PERMISSION IN 1917 CODE

It is the Diocesan Bishop that will grant the permission for diocesan priests. In the case of clerical religious, the supreme moderator of the congregation can grant

the permission. In addition to the permission of his ordinary, the permission of the ordinary of the place where the election will be conducted is obligatory. A religious will always require double permission: that of his general superior and that of the Bishop of the place where the election will be conducted. While a diocesan cleric to be elected in his own diocese will need the permission of only his Bishop.[xix]

One question that remains unanswered was the situation where the election will be conducted in more than one place, which ordinary will grant the permission? On this J. Chelodi (1942, 199), was of the opinion that the permission will be granted by the ordinary of the place where the center of the election was focused.[xx]

However, considering the position of different authors, J. Brunini concluded that the permission of the ordinary of the place in which the vast majority of the votes are domiciled is sufficient.[xxi]

In all these, one basic fact is certain, a cleric is required to obtain the permission of his ordinary before accepting or soliciting for any public office of senators and legislators. This background is very important because it will reflect in the decision of the coetus during the preparation for the 1983code of canon law.

In the 1917 code, we have to note that the legislator through the promulgation of the norms regarding clerical participation in public offices expressed concern on the need to safeguard the common good of the society and at the same time safeguarding the missionary activity for which the clerics were ordained. Clerical participation in public offices was placed under the section regarding activities that are alien to the priestly state.

The flexibility noticed in the codification of the norms of the 1917 code regarding the participation of clerics in public office is an indication that the legislator was concerned about the promotion of the Christian faith even in the modern society. Therefore, the introduction of the apostolic indult in some situations and the permission of the ordinary in others, created a room for the relaxation of the law which has its pros and cons.

3. 0 THE ITER OF CANON 285 § 3 AND 287

3.1 SYNOD OF BISHOPS

The document from the synod of Bishops before the 1983 code states: “Priests should select a definite pattern of action, when it is a question of the defence of fundamental human rights, the promotion of the full development of persons and the pursuit of peace and justice [ ] . In circumstances in which there legitimately

exist different political, social, and economic options, priests like all citizens have the right to select personal options. But since political options are by nature contingent and never in an entirely adequate and perennial way interpret the gospel, the priest, who is the witness of things to come, must keep a certain distance from any political office or involvement. Moreover, care must be taken lest this option appear to Christians to be the only legitimate one or become a cause of division among the faithful."[xxii]

"Leadership or active militancy on behalf of any political party is to be excluded by every priest unless, in concrete circumstances, this is truly required by the good of the community, and receives the consent of the bishop after consultation with the priests ' council and, if circumstances call for it, with the episcopal conference" [xxiii]

In relation to the Bishop giving permission to his priest to participate in politics, J. H. Provost writes: "The priests' council was to be consulted by the bishop before giving his consent. If circumstances called for it, the bishop was to consult with the conference of bishops before giving his permission. The synod did not specify what those circumstances might be, but it also clearly left the granting of permission in the hands of the local ordinary and did not restrict it to the Apostolic See."[xxiv]

3.2 FORMATION OF THE CANON

The 1977 Schema of can 285 § 3 reads: "Bishops are not to assume public offices, especially those which entail a participation in the exercise of civil power, without the permission of the Holy See, nor other clerics unless they have obtained permission from the same Holy See in places where the pontifical prohibition is in effect, or in other places from both their own ordinary and the ordinary of the place in which they intend to exercise the power of administration".[xxv] In the schema, apart from the emphasis placed on the requirements of obtaining permission, we see the same intention of the legislator contained in the 1917 code. The consultation group has deemed it important to place this emphasis and a consequence there was no change in the 1980 schema.[xxvi]

However, in the final draft presented to the Saint Pope John Paul II on April 22, 1982, a minor textual modification was made. The word "ea praesertim" were cancelled. We presume and believe that the consultors were of the opinion that all public offices involve the exercise of civil power.[xxvii]

Nevertheless, the review of the canon by Saint Pope John Paul II and seven experts. resulted in a major modification that indicates a shift in the requirements for obtaining permission to assume public any office that involves the exercise of

civil power. Final text of the canon was directed towards a clear prohibition against assuming such an office. The emphasis on obtaining permission was eliminated. This change was a surprise to bishops and canonists. They never expected such a direct prohibition considering the earlier regulations before the 1983 code of canon law.[xxviii]

What are the motivations behind this sudden change? We observed that Pope John Paul II in his address to the Mexican Bishops in Puebla, expressed his views that public offices and politics should be left for the lay persons. He states: “It is necessary to avoid supplanting the laity, and to study seriously just when certain ways of substituting for them retain their raison d'etre. Is it not the laity who are called by the virtue of their vocation in the church, to make their contribution in the political and economic areas, and to be effectively present in the safeguarding of human rights”.[xxix]

Saint Pope John Paul II ‘s direct responses to Clerics who were involved in politics and public offices will help us understand the reasons behind the modifications he brought in the canonical legislation on priest’s involvement in public offices. J.A. XOMONOCHAk, captures it very well in these words: “Pope John Paul 11 [.. .] has taken steps to discourage and ban direct political activity by priests and religious, the best known cases being those of Jesuit Fr. Robert Drinan, the priests holding government positions in Nicaragua, three Sisters of Mercy Agnes Mary Mansour, Elizabeth Morancy and Arlene Violet, as well as a priest in the Canadian Parliament, Fr. Robert Ogle. The Pope's motivation for these disciplinary interventions is apparently complex, aimed at avoiding several dangers: the possibility of scandal involved in the support of controversial legislation or public policies; the confusion of Christian principles of social action with political ideologies and their reduction to political programs; the compromising of the unifying role of the priest and the loss to both the church and the world of the witness to the transcendent given by the religious. He does not entirely preclude the possibility of the clergy and religious engaging in social and political activities: but it is clear that for him these activities are typically the role of the laity.”[xxx]

3.3 CAN. 139 § 2 OF THE 1917 CODE AND CAN. 285 § 3 OF THE 1983 CODE A SHIFT IN PERSPECTIVE

The modification seem in the two different codes confirms that there is a shift in legislation and perspective regarding the conception of clerics in public office in the 1917 code of canon law and the new legislation in the 1983 code of canon law. There are lots of revelation when we consider the textual comparisons of

both canons. In the 1917 text[2], the phrase “ne assumant” is replaced by the verb “vertantur” in the 1983 code. A. R. Smith (1985), emphasises that the use of the verb “vetare” which means forbid, could be considered as representing a determined prohibition, an approach stricter than what we had seen in the previous legislation.[xxxi]

Secondly, we observed that can 139 par 2 of the 1917 code had specified public offices which involves exercise of lay jurisdiction or lay administration, we don’t see such specification in the 1983 text. In can 285, par 3, a new phrase was introduced: “civilis potestas”. It is evident that the terms lay jurisdiction and lay administrations both denotes the exercise of civil powers (civilis potestas), one may assert that the prohibitions contained in canon 285, par 3 comprises those offices which involve the exercise of lay jurisdiction and lay administration.[xxxii] Canonists have argued that the terms: "lay jurisdiction" and "lay administration" both involve the exercise of civil power. The former because it involves the direct governing of subjects and the latter because it involves the carrying out of civil legislation.[xxxiii]

Thirdly, canon 139 par 2, with the phrase “sine apostolico indulto” created room for exceptions and provided the authority who can grant the exception. Can 285 par 3 on the other hand did not create any opportunity for exceptions from the canonical regulation in this our own case.[xxxiv]

Nevertheless, we cannot conclude that there is an outright prohibition as we will see further in this work considering the 1983 code as a whole regulation on Church’s discipline

[2] CIC(1917) canon 139, par. 2 reads: "Sine apostolico indultu medicinam vel chirugiam ne exerceant; tabelliones seu publicos notarios, nisi in Curia ecclesiastica, ne agant; officia publica, quae exercitium laicalis iurisdictionis vel administrationis secumferunt, ne assumant. (CIC (1917), canon 139, § 2 states: “Without an apostolic indult they shall not practice medicine or surgery, act as recorders or public notaries, except in ecclesiastical curias; accept public offices which involve secular jurisdiction or duties of administration.”)

4.0 1983 CODE AND NORMS GOVERNING CLERICAL CONDUCTS IN POLITICAL AND CIVIL LIFE[3]

4.1 CANON 285 § 3 AND CLERICAL INVOLVEMENT IN CIVIL POWER

The legislator in the first two paragraphs of can 285 admonished clerics to abstain and avoid whatever is unbecoming or foreign to the clerical state. We are at the level of admonition. The intention is evident clearly to facilitate concentration which will ensure a fruitful pastoral ministry. The first paragraph centers on lifestyle and activities that are completely unbecoming to the clerical state. The 1917 code listed a number of activities like gambling etc. The 1983 code prefers to offer a general rule. Many of the activities that were considered inappropriate in the past are now being tolerated.

The second paragraph considers those activities that even though are not unbecoming are quite foreign to the clerical state. The 1917 code mentions activities like medicine and psychoanalysis. Thee 1983 code prefers not to specify them.

The third paragraph introduces the canonical prohibition restricting clerics participation in public offices that involves the exercise of civil power.

We should note that the said canon considering that it involves restriction of rights must be subjected to a strict interpretation in line with can 18.[xxxv] Therefore, the wordings of the textual presentation of the canon must be strictly interpreted.[xxxvi]

The 1983 code by the use of the word "Clerici" refers to Bishops, Priests and deacons. So, the canon we are considering concerns only clerics both Diocesan

[3] The 1983 code of Canon in the outlined canons below in Book two titled De Populo Dei, tried to capture the regulations regarding the participation of clerics in public affairs more especially in political and civil life.
Cab 285 § 1 Clerics are to refrain completely from all those things which are unbecoming to their state, according to the prescripts of particular law.
Can 285 § 2 Clerics are to avoid those things which, although not unbecoming, are nevertheless foreign to the clerical state.
Can 285 § 3 Clerics are forbidden to assume public offices which entail a participation in the exercise of civil power.
Can 285 § 4 Without the permission of their ordinary, they are not to take on the management of goods belonging to lay persons or secular offices which entail an obligation of rendering accounts. They are prohibited from giving surety even with their own goods without consultation with their proper ordinary. They also are to refrain from signing promissory notes, namely, those through which they assume an obligation to make payment on demand.
Can 287 § 2 They are not to have an active part in political parties and in governing labor unions unless, in the judgment of competent ecclesiastical authority, the protection of the rights of the Church or the promotion of the common good requires it.
Can 289 § 2 Clerics are to use exemptions from exercising functions and public civil offices foreign to the clerical state which laws and agreements or customs grant in their favor unless their proper ordinary has decided otherwise in particular cases.

and religious, however, we have to note that there are canons specifically for religious. Our canon of study therefore focuses on clerics to show that the church demands a mode of comportment from those who have been designated for the service of God and His people. The textual analysis of Can 285 § 3 exposes the fact that development in our civil society and in the life of the church and her clerics account for a more specific legal approach and attention towards clerics involvement in the civil and public offices.

Even though can 285 regards clerics, an exception was granted to permanent deacons who although they are clerics enjoy a more favourable approach in relation to public offices.[xxxvii] This is as a result of their particular condition and state.

4.2 CAN 287[4] IN THE POLITICAL AND CIVIL LIFE OF A CLERIC

Can. 287 even though it requires clerics to foster social justice, peace and harmony among the people of God, in the second paragraph this quest for social justice was delimited. Clerics are not to take an active part in politics.

The second Vatican Document, the Constitution on the Church in the modern world, Gaudium et Spes no. 90 influenced this Canon. Christians and especially Catholics are encouraged to be salt of the earth and light of the world through active participation in the affairs of the world in order to bring the gospel of Christ even to the most sophisticated modern world we can imagine today.

However, the permission of the competent ecclesiastical authority resurfaces again and this questions whether the outright prohibition we saw earlier in can 285 § 3 was an outright prohibition or a mitigated one.

Taking an active part demands that such action must be expressly evident. An active person is not a hidden person. Taking part does not imply voting during election. It demands that such a cleric must have chosen a particular party against the other or promote the coure of a particular party at the expense of the other. Furthermore, it implies that such a cleric have the intention of playing an active role in a governing labour union or has a course to defend either religious or civil.

4.3 DISPENSATION GRANTED BY A DIOCESAN BISHOP

The question has been raised as to whether the Diocesan Bishop can grant dispensation according to the norms of can 87 § 1 to his cleric in relation to can

[4] Can. 287 §1. Most especially, clerics are always to foster the peace and harmony based on justice which are to be observed among people.
§2. They are not to have an active part in political parties and in governing labour unions unless, in the judgment of competent ecclesiastical authority, the protection of the rights of the Church or the promotion of the common good requires it.

285 § 3. That is can a diocesan Bishop dispense his cleric so that he can participate in a public office involving the exercise of civil power.[xxxviii]

This possibility which was present in the 1917 code was explicitly removed from the 1983 code in reference to can 285 § 3. The question remains on whether applying can 87 § 1 to can 285 § 3 goes against the spirit of the law and the intention of the legislator in removing such permission.

We should note that Can 139 § 2 of the 1917 code says that "permission may be granted" while can 285 § 3 states that it is prohibited.

Can. 87 §1 states that a diocesan bishop, whenever he judges that it contributes to their spiritual good, is able to dispense the faithful from universal and particular disciplinary laws issued for his territory or his subjects by the supreme authority of the Church. He is not able to dispense, however, from procedural or penal laws nor from those whose dispensation is specially reserved to the Apostolic See or some other authority.[xxxix]

Can 285 § 3 being a universal disciplinary law is subject to dispensation according to the norm of law in line with can 87 § 1. The dispensation can be granted by the Diocesan Bishop and not the local ordinary. Nevertheless, in line with can 381 § 2 those persons who head communities other than a diocese mentioned in can 368 are equivalent in law to a Diocesan Bishop. By this affirmation, they have power to dispense also from the prohibitions of can 285 § 2

Furthermore, in the application of dispensation, we should bear in mind the demands of can 92 which requires a strict interpretation for granting dispensation and deciding who has the power to dispense. In line with can 91, the Diocesan Bishop can grant this dispensation both for his incardinated priests who are working within or outside his diocese and for other clerics working within the territorial boundaries of his diocese without prejudice to the norm of law.

Can this power be delegated? In line with can. 137 § 1, ordinary executive powers can be delegated both for a single act and for all cases, unless the law disposes otherwise, the Diocesan Bishop or his equivalent can delegate the power to dispense from the prohibitions of can 285 § 3. To any of his local ordinaries. In the case of religious, the dispensation can come from the Holy see or the Bishop under whom they have their canonical erection in line with can 678. However, faithful obedience to their superiors and the constitution and discipline of the institute. The dispensation can also be granted by the Bishop of the place where the religious wishes to participate in the public office.[xl]

4.4 APPLICATION OF CANON 285 § 3 AND 287 TO RELIGIOUS

It is good to note that this can. 285 § 3 has its parallel canon in can 672§ 3 concerning religious and canon 739 § 4 concerning members of the societies of Apostolic life. The prohibition does not apply to permanent deacons ex can 288. Also, the prescriptions of can 710 and 713 makes it clear that can 285 § 3 is not binding to lay members of secular institutes.

On the other hand, in line with can 711 of the 1983 code, based on fact that the proper canonical condition of consecrated members of secular institutes does not change whether lay or clerical, clerical members of secular institutes are subject to the provisions of canon 285, § 3.

In all, the prohibitions whether for religious clerics or diocesan clerics is geared towards an adequate concentration towards the pastoral ministry. This is the reason why can. 289 § 2 requires clerics to request for exemption when such activities are proposed by civil government are alien or not adequate to the clerical life and state

The question remains open, are religious that are not clerics bound by the prohibitions instituted by can 285 § 3 or not, considering that permanent deacons who are clerics are exempted from this law by the universal law, unless particular law determines otherwise (cfr can. 288). The parallel can 672 which concerns both male and female religious forbids all religious from same activities. Clerical members of consecrated life are prohibited by can 739 and they are therefore to maintain the obligation of clerics in this case. The legislator is of the view that the assumption of public offices by religious and clerical members of the consecrated life will affect negatively their ministry among the people of God.

4.5 THE NATURE OF PRIHIBITED OFFICES

By public office, the legislator implies any activity that is not private and aims at offering services to as many people as possible. However, it must involve the exercise of civil power for such a public office to incur the prohibition of can 285 § 3. It involves the exercise of certain sovereign powers directly or indirectly (Executive, legislative or judiciary) government ministers, attorney general, members of the parliaments and house of representatives, local government chairman and equivalents, judges and magistrate. It is impossible to provide an exhaustive list of offices prohibited. However, it does not apply to state or federal employed staffs.[xli]

It does not end in not being elected or chosen to head such an office but the legislator goes further to demand that the permission of the competent ecclesiastical authority is required before one can have an active role in politics.

Such permission must envisage the protection of the rights of the Church or the promotion of the common good either of the stated reason can serve.

5.0 CONCLUSION

As we have seen, the legislator has maintained the same legal principle from the 1917 code to the 1983 code but the 1983 code is more refined and has reduced much ambiguity that were experienced in the 1917 code. However, the problem of implementation was not properly or completely resolved. We still have to bear in mind that the second Vatican council has restructured a lot in the understanding of the people of God and this will be quite evident in the structure of the norms of 1983 code of canon law. Therefore, important canonical consequences will be seen as a result of the new ecclesiological perspective that was adopted in the second Vatican council.

These canonical regulations concern principally Bishops, priests and transitional deacons and prohibits them from participating in any activity which relates to a public office involving participation in civil powers. We should bear in mind that the post conciliar canonical regulation as contained in the 1983 code of canon law has the people of God at the center of its normative regulations. This is why the last canon 1752 reminds us that all is geared towards *salus animarum*. Salvation of souls of both the ministers, that is clerics and the other members of Christ's faithful.

Bearing in mind this important goal the legislator in the 1983 code of canon law, concerning the active participation of clerics in politics and civil life, in the first place expressed the desire to save the ministers because their salvation is quite important for the salvation of the rest of the people of God. Therefore, the outright prohibition of the participation of the clerics in public offices involving the exercise of civil powers was intended to assist them in concentrating towards that all important mission for which they sacrificed everything in this world to make themselves available for the mission for which Christ entrusted to them.

However, the salvation of the clerics is important for the salvation of the rest of the people of God and all humanity which was the mission for which Christ became human and which he entrusted to the apostles.

Consequently, the essence of this prohibition is to promote ministerial service by Clerics among the people of God. Public offices involving the exercise of civil power will be detrimental to the purpose for which one accepts to be a servant of Christ among the people of God. Participation in public offices and positions that requires the exercise of civil powers may not promote ministerial service within the people of God.

Nevertheless, this regulation admits exceptions which can be accommodated legally through the granting of dispensations and permissions especially when there is need to defend the principles of the Church's teaching and the common good. This flexibility that we observe through the introduction of a dispensation and permissions which can be granted by the Diocesan Bishops evokes the necessity to ensure that the rigidity of the law does not stifle the goal in view: *salus animarum*

We should not forget that the nature of the political system in our world today and especially Nigeria keeps one wondering, how can a cleric maintain his integrity amidst chains of corruption. In the words of the psalmist in psalm 119:9, we can ask how can the politician remain sinless? And we can ask furthermore, how can a cleric holding civil power remain sinless? It is not that politics is a condemned profession but has a cleric the necessary grace to function as a governor and a priest at the sometime in our modern understanding of APC, ADC, PDP to mention but a few in Nigeria today.

The major problem with can 285 § 3 is its enforcement. How do we enforce it? A priest who have chosen to accept to be elected to the public office especially as we have seen in Nigeria how does the law punish them. Most often we hear that they have been sollevated from the exercise of the priestly ministry. We hear that the Bishop has taken away their faculty. After 8 years or 4 years of holding public office what follows? Are we to abandon them in the world knowing that they are priests according to the order of Melchizedek?

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[i] COUNCIL OF CARTHAGE, Canon 15, in J. Mansi, vol. 3, col. 883: "Item placuiut, ut episcopi et presbyteri et diaconi vel clericalnon sint conductores, neque procuratores, neque ullo turpi vel in honesto negptio victim quaerant: quia respicere debeant scriptum esse: nemo militans Deo, implicat se negotiis saecularibus"

[ii] R. SCHOELL and G. KROLL (eds.), *The Code of Justinian in Corpus luris Civilis*, Berlin, Weidmans, 1928, Novellae 123 , 6: "A1ium autem fieri susceptorem aut exactorem fiscalium funtionum aut conductorem publicorum aut alienarum possessionum aut curatorem domus aut procuratorem litis aut fideiussorem pro talibus causis episcopum aut oecononum aut alium clericum cuiuslibet gradus aut monachum proprio nomine aut ecclesiae aut monasterii subire non sinimus, ut non per hanc occasionem et sanctis domibus damnum fiat et sacra ministeria impediantur. (See "Oeconomus ecclesiae", in A. BERGER, in Encyclopaedic Dictionary of Roman Law, Philadelphia, The American Philosophical society, 1953, p. 571, (Cfr also, J. BARRQ, Justinian and the Later Roman Empire, Madison, University of Wisconsin Press, 1966, pp. 185—201).

[iii] BURCHARD OF WORMS, *Decretum*, II, c. 145: Pervenit ad sanctam synodum quod quidam, qui in clero videntur electi, propter lucra turpla conductores alienarum possessionum fiant, et saecularis negotia sub cura sua suscipiant: Dei quidem ministerium parvi pendentes, saecularium vero discurrentes perdomos, et propter avaritiam patrimoniorum sollicitudinem sumentes. Decrevit itaque sanctaum Concilium, nullum deinceps, non episcopum, non clericum, non monachum, aut possessiones conducere, aut negotiis saecularibus se miscere, prater ecclesiaticarum rerum sollicitudinem"

[iv] (Cfr. S. NEIL, *A History of Aristian Missions*, Harmonds-worth, Penguin, 1964, p. 179

[v] (Cfr. SACRA CONGREGATIO DE PROPAGANDA FIDE, Encyclical letter, "De spirituali regimine christifidelium Goae et insularum adiacentum", January 15, 1622, in *Collectanea sacrae conqreqationi de Propaganda Fide*, vol. 1, 191907, Romae, Ex typographxa Polyglotta S. C. De Propaganda Fide, n. 1, p. 1.

[vi] ALEXANDER VIl, Apostolic constitution, Sacrosancti, January 18, 1658, in *Collectanea sacrae conqreqationi de Propaganda Fide*, vol. 1, 1907, Romae, Ex typographxa Polyglotta S. C. De Propaganda Fide, n. 129, pp. 39 41.
[vii] J. H. PROVOST, "Clergy and Religious in Political Office in the American context", in, *The Jurist*, 44 (1984) p. 282.
[viii] Concilium Tridentinum Decreta de vita et honestate clericorum innovantur, Sessxo c. I, xn *Canones et decreta sacrosancti oecumenici concilii Tridentini,* Romae, Typxs S. Congregationes de Propaganda Fide, 1855, p. 127: "Nihil est, quod alios magis ad pietatem et Dei cultum assidue instruat, quam eorum vita et exemplum, qui se divino ministerio dedicarunt. Cum enim a rebus saeculi in altiorem sublati locum conspiciantur, in eos tamquan in speculum reliqui oculos conjiciunt, ex iisque sumunt quod imitentur".
[ix] LEO Xlll, Encyclical letter, *Constanti Hungarorum*, September 11, 1893, in Ass, 26(1893-1894) , pp. 129-136.
[x]SACRED CONSISTORIAL CONGREGATION, Decree, *De sacerdotibus ad munus deputati in Gallia concurrentibus*, May 9, 1913, in AAS, 5 (1913), p. 238.
[xi] CIC (1917), canon 139,
[xii] J. ABBO and J. D. HANNAN, *The sacred canons*, st. Louis, Herder, 1952, vol. 2, p. 198.
[xiii] Cfr. C. Gaffney, *Priests, Religious, and Public office in the 1983 code of canon law*, National library of Canada, Ottawa, CA, 1990, p. 147-147
[xiv] Ibid, p.148
[xv]J. B. BRUNINI, *The Clerical Obligations of Canon 139 and 142*, Washington, The catholic University of America, 1937, vii—115p.
[xvi] F. X. WERNZ and P. VIDAL *lus canonicum*, Romae, Pontificia Universitas Gregoriana, 1928, vol. 2, p. 152: "Munera vero civilia etsi non iurisdictionalia, velut consiliarii in municipiis aut provincia, cum plerumque sint plus vel minus coniuncta cum onere reddendarum rationum, vix fieri potest ut ea licite acceptunt sine Ordinarii licentia.
[xvii] J. ABBO and J. D. HANNAN, op. cit., p. 198-200
[xviii]J. B. BRUNINI, op. cit., p. 62
[xix] Christopher Gaffney, op. cit. p 150
[xx] J. CHELODI, *lus Canonicum de Personis*, Vicenza, Societa Anonima Tipografxca, 1942, p. 199: "Sed quis Ordinarius loci si electores per plures dioeceses distribuuntur, ut facile evenire ubi systema viget, quod vocant, proportionale? Casus non expresse praevisus duplicem admittit solutionen: aut omnes consulere Ordinarios aut illum tantum cui subest locus in quo lege centrum electionis est. Hoc alterum sufficere videtur."
[xxi] J. B. BRUNINI, op. cit., p. 61.
[xxii] SYNODUS EPISCOPORUM, "Documenta de sacerdotio ministerali et de iustitia in mundo" November 30 , 1971, in Acta Apostolicae Sedis (AAS), vol. 63 (1971), pp. 912–913
[xxiii] Ibid., p. 913: "Assumptio muneris ad moderationem pertinentxs (leadership) vel actuose militandi modus pro aliqua factione politica excludi debent a quolibet presbytero , nisi id in concretis extraordinariisgue circumstantiis bono communitatxs reapse postuletur, de consensu guidem Episcopi, consultis Consilio Presbyterali et si casus ferat conferentia Episcopal i. "
[xxiv] J. H. PROVOST, op.. cit., p. 291.
[xxv] PONTIFICIA COMMISSIO CODICI IURIS CANONICI RECOGNOSCENDO, schema canonum Libri 11 de Populo Dei, Romae, Typis- polyglottis Vaticanis, 1977, canon 146, par. 2 p. 67: "Oflicia publica, ea praesertim quae participationem in exercitio laicalis potestatis secumferunt, ne assumant, Episcopi ' sine licentia Sanctae Sedis, nec alii clerici nisi obtenta, in locis ubi intercesserit prohibitio pontificia, licentia eiusdem sanctae Sedis, in aliis vero locis licentia tum Ordinarii proprii, tum Ordinarii loci in quo potestatem - administrationemve exercere intendunt",
[xxvi] COMMUNICATIONES, PONTIFICIA COMMISSIO CODICI IURIS CANONICI RECOGNOSCENDO, vol. X-XV, Schema Codicis luris Canonici (Patribus Commissionibus reservatum) Lxbrerxa Editnce Vaticana, 1980, Canon 260, par. 2 p. 58.
[xxvii] COMMUNICATIONES, PONTIFICIA COMMISSIO CODICI IURIS CANONICI RECOGNOSCENDO, vol. X-XV, Schema Novissimum iuxta Patrum commissxonis emendatum atque Summo Pontifice praesentatum, Typis polyglottis Vaticanis, 1982, canon 289, par. 2 P. 50.
[xxviii] A. R. SMITH, "Political Involvement and the Revised Code", in, M. Kolbenschlag, (ed.), *Between God and Caesar: Priests, Sisters, and Political Office in the United States*. New York: Paulist Press, 1985, p. 107
[xxix] POPE JOHN PAUL 11, "Opening address of the Puebla Conference", in J. EAGLESON and P. SCHAR.PER (eds.), *Puebla and Beyond: Documentation and Commentary*, Maryknoll, NY Orbis, 1979, p. 69.
[xxx] J. A. KOMONOCHA.K "Clergy, Laity, and the Church's Mission in the World", in M. KOLBENSCHLAG, (ed.), op. cit. pp. 149-150; Cfr also KOMONOCHAX, A. , "Clergy, Laity and the Church's Mission in the World", in *The Jurist*, 41 (1981), pp. 422-447.
[xxxi] A. R. SMITH, op. cit., p. 107.
[xxxii]. C. GAFFNEY, op. cit., p. 175

[xxxiii] John A. ABBO and Jerome. D. HANNAH, The Sacred canons, St Louis, Herder, 1952, vol. 2, p. 198.
[xxxiv] A. R. SMITH, in op. cit., p. 108.
[xxxv] Canon 18: "Leges quae poenam statuunt aut liberum iurium exercitium coarctant aut exceptionem a lege continent, strictae subsunt interpretationi.
[xxxvi] L. ORSY, op. cit., p. 246.
[xxxvii] Can. 288 The prescripts of cann. 284, 285, §§3 and 4, 286, and 287, §2 do not bind permanent deacons unless particular law establishes otherwise.
[xxxviii] t. J. GREEN, *A Manual for Bishops: Rights and Responsibilities of Diocesan Bishops in the Revised Code of Canon Law*, Washington, D.C., NCCB, 1983, pp. 27-71.
[xxxix] Episcopus dioecesanus fideles, quo ties id ad eorundem spirituale bonum conferre iudicet, dispensare valet in legibus disciplinaribus tam universalibus quam particularibus pro suo territorio vel suis subditis a suprema Ecclesiae auctoritate latis, non tamen in legibus processualibus aut poenalibus, nec in iis quarum dispensatio Apostolicae sedi, aliive auctoritati specialiter reservatur.
[xl] J. H. PROVOST, o.p. cit. p. 298
[xli] C. Gaffney, Op. Cit., p. 200